



Special Political and Decolonization Committee

Background Guide



Agenda:
**“Revisiting the Montevideo
Convention and International
Guidelines for the recognition of
Secessionist Entities while limiting
discretion of Parent States.”**



Special Political and Decolonization **Committee**

AGENDA - Revisiting the Montevideo Convention
and International Guidelines for the recognition
of Secessionist Entities while limiting discretion
of Parent States.



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Letter From the Executive Board

The Executive Board welcomes all the delegates to the United Nations General Assembly IV - Special Political and Decolonization Committee at WELMUN 2026. The agenda item for this committee, “Revisiting the Montevideo Convention and International Guidelines for the Recognition of Secessionist Entities while Limiting the Discretion of Parent States,” requires extensive research and analysis from all the delegates.

In order to gain a thorough understanding of the topic for the committee, it will be essential for all the delegates to master the laws related to state recognition and statehood, the implications of sovereignty, and the different methods of intervention in the affairs of another country. A deeper understanding of the different aspects of foreign policy will be crucial for success in the committee.

The Executive Board hopes that each delegate will contribute to the committee with more than mere speeches, but with a creative approach to problem solving and a willingness to utilize diplomatic and pragmatic solutions in the face of one of the most challenging topics in today’s world.

All levels of participants, whether they are seasoned veterans of the MUN or first time MUNers, are encouraged to participate in the committee. We look forward to three days of stimulating debate, collaboration, and learning.

Special Political and Decolonization Committee

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Please do not hesitate to reach out to the Executive Board regarding any doubts or queries you may have. We eagerly await to welcome you to the Special Political and Decolonization Committee.

Best Wishes & Warm Regards,

The Executive Board

SPECPOL

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Note: The deadline for the submission of position papers is 18th July, 2026.



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WELMUN 2026

SPECPOL

AGENDA - Revisiting the Montevideo Convention and International Guidelines for the recognition of Secessionist Entities while limiting the discretion of Parent States

About The Committee

The United Nations was formally established in 1945 following the conclusion of World War II and the subsequent signing of the UN Charter in San Francisco. This foundational document provides a framework for international diplomacy, with primary objectives of maintaining global peace and security, fostering friendly relations among nations, and promoting social progress and human rights. Central to this mission was the creation of the General Assembly (UNGA). Today, the UNGA serves as the premier deliberative and representative body of the organization, comprising all 193 Member States. It functions as a unique global forum where nations engage in multilateral discussion on the full spectrum of international issues covered by the Charter, ranging from humanitarian crises to the progressive development of international law.

Because the scope of the General Assembly's work is so vast, it distributes its workload across six specialized main committees. The Fourth Committee, known as the Special Political and Decolonization Committee (SPECPOL), occupies a unique position within this structure. Originally, the Fourth Committee was primarily concerned with trusteeship and decolonization matters, while special political issues were handled



separately. However, as decolonization progressed and the number of trust territories decreased, the General Assembly merged these mandates in 1993 to create the current SPECPOL structure. This merger allowed the committee to address a more diverse and complex portfolio of contemporary political challenges that do not fall strictly under the purview of the other five committees.

In the modern landscape, SPECPOL's regular agenda is both broad and critical to international stability. It serves as the primary venue for discussing the Palestinian question and the political aspects of UN peacekeeping operations—including relevant administrative and budgetary matters. The committee also addresses specialized technical and humanitarian topics, such as the peaceful uses of outer space, the effects of atomic radiation on human populations, and the work of the United Nations Relief and Works Agency (UNRWA). By providing a platform for member states to negotiate draft resolutions and exchange perspectives, SPECPOL plays a vital role in shaping the recommendations that are sent to the General Assembly Plenary for adoption.

It is essential for delegates to understand the committee's jurisdictional boundaries. While SPECPOL is a powerful deliberative organ, its outputs are generally recommendatory and do not carry the force of international law. Unlike the Security Council, SPECPOL does not have the mandate to authorize military interventions or impose economic sanctions. Instead, its strength lies in building international consensus and establishing norms. Participation is also enriched by the presence of various non-governmental and intergovernmental organizations; these entities hold observer status and provide expert testimony and research, but final decision-making power rests exclusively with sovereign member states, since observers do not possess voting rights in the committee's proceedings.



About The Agenda: Historical context

The evolution of statehood has long been defined by a tension between the absolute authority of established nations and the rising aspirations of emerging political entities. To understand the current limitations of the Montevideo Convention, one must trace the legal journey from the rigid foundations of sovereignty to the modern-day complexities of international recognition.

I. The Montevideo Convention and International Guidelines

The Montevideo Convention on the Rights and Duties of States, adopted in 1933 at the Seventh International Conference of American States, remains a central reference for the legal criteria of statehood. The Convention sets out objective conditions that an entity must satisfy in order to be regarded as a state, regardless of whether it is recognized by other states. These provisions form the doctrinal starting point for any discussion on the recognition of secessionist entities.

Article 1 of the Montevideo Convention defines the four classic criteria of statehood:

“The state as a person of international law should possess the following qualifications:

- a) a permanent population
- b) a defined territory
- c) government
- d) capacity to enter into relations with the other states.”



These four elements are widely treated as the de facto test of statehood in public international law. The Convention does not require recognition by other states as a condition for statehood, instead, recognition is treated as a political act that may follow from the objective fulfilment of these criteria. This distinction is central to debates on secessionist entities, as many such entities claim to satisfy the four criteria even when the parent state refuses to recognize them.

Article 3 of the Convention clarifies that:

“The political existence of the state is independent of recognition by the other states.”

This provision underpins the declaratory theory of recognition, states are considered to exist in law once they meet the objective criteria, irrespective of whether other states have formally acknowledged them. In practice, however, political calculations, security concerns, and the principle of territorial integrity often lead states to delay, withhold, or condition recognition, thereby broadening the discretionary power of parent states.

Article 4 affirms that all states are equal in rights and duties, Article 5 recognizes the complete sovereignty of every state over its territory and population, and Article 8 obliges states to refrain from armed intervention in the internal affairs of other states. These provisions are frequently invoked by parent states to emphasize the inviolability of their borders and to resist unilateral secession or external support for secessionist entities.

Article 7 provides that every state has the duty to respect the rights of other states under the Convention, reinforcing the principle of mutual restraint. Article 9 recognizes the right of states to political independence, which secessionist entities



may invoke to justify their claims to self-determination and statehood. Article 8 reiterates the obligation to settle disputes by peaceful means, while Articles 10–11 regulate the recognition of states and governments, treating recognition as a matter of domestic policy but one that must respect the equality and sovereignty of other states.

In sum, the Montevideo Convention provides a framework of objective criteria and reciprocal rights and duties that can be applied to secessionist entities. Its provisions make recognition a political, rather than a legal, prerequisite for statehood, yet they are routinely balanced against the Charter-based principles of territorial integrity and non-intervention, which are central to the present agenda.

II. Secessionist Entities

A secessionist entity is a sub-state actor or territorial movement that seeks to detach a portion of an existing state's land and population in order to establish a new, independent sovereign authority. Unlike autonomy movements, which demand greater powers within the existing constitutional order, secessionist entities aim for a total legal divorce from the parent state, accompanied by the creation of a separate international legal personality.

In international law, such entities typically occupy a precarious “gray zone” between domestic rebellion and full-fledged statehood. Many secessionist entities exercise key state-like functions such as taxing citizens, policing borders, administering public services, and maintaining basic institutions of governance. However, they lack the formal stamp of international legitimacy, as they are generally not recognized by the



United Nations or the majority of states. Several secessionist entities also fail to exercise effective control over all territory they claim, or face ongoing armed contestation, so functional attributes alone do not automatically translate into effective statehood.

The legal status of secessionist entities is shaped by the tension between two core principles: **self-determination** and **territorial integrity**. International law has traditionally recognized a right to external self-determination in decolonization contexts, where colonial territories may lawfully separate from imperial powers. By contrast, claims to unilateral internal secession from an established, recognized state are generally not accepted as a *per se* right, except in narrow circumstances such as severe and persistent human-rights violations, or where secession occurs by mutual political agreement.

Where a group attempts to secede from an existing state without either consent or a clear decolonization-era legal basis, the international community commonly labels the resulting arrangement an “unrecognized state” or a “de facto state.” These entities may satisfy all the Montevideo criteria—permanent population, defined territory, government, and capacity to enter into relations with other states—but their unilateral declaration of independence, absent parent-state consent, often triggers diplomatic isolation. They may be excluded from membership in the United Nations, face restrictions on access to international financial institutions, and encounter limits on foreign aid, trade, and diplomatic representation.

The present agenda centers on whether such entities should be assessed primarily according to their functional success—measured against the Montevideo test—or according to their political acceptability to the parent state and the broader international community. Even when a secessionist entity meets the Montevideo



criteria in practice, recognition and access to international institutions remain contingent on political decisions by states, regional organizations, and international bodies, which means that functional performance does not guarantee full legal status.

Several contemporary and historical disputes illustrate how these tensions play out in practice.

- **Kosovo** declared independence from Serbia in 2008 after a period of international administration and armed conflict. The entity exercises full control over its territory, maintains institutions of governance, and has been recognized by over 100 states, yet it remains outside the United Nations and is not recognized by Serbia or several other states. The International Court of Justice's 2010 advisory opinion on Kosovo's declaration of independence clarified that general international law contains no prohibition on declarations of independence, but did not establish that such declarations automatically create statehood or compel recognition.
- **South Sudan** separated from Sudan in 2011 following a negotiated referendum process under the Comprehensive Peace Agreement. The separation was consented to by the parent state and broadly accepted by the international community, leading to rapid recognition and UN membership. This case is often cited as an example of internal secession occurring within a framework of political agreement rather than unilateral assertion.
- **Somaliland** has functioned as a de facto state since 1991, maintaining relative stability, holding elections, and administering most public services. It meets many of the Montevideo criteria in practice, yet it remains unrecognized by the international community and by Somalia, which continues to claim it as a breakaway region.



III. Parent State

The term Parent State refers to the original sovereign entity from which a secessionist group seeks to detach a portion of territory and population in order to establish a new, independent authority. In the prevailing structure of international law, the Parent State is regarded as the legitimate holder of sovereignty over the territory in question, and its territorial integrity is presumed to be protected under the Westphalian tradition of statehood. This tradition emphasizes the inviolability of borders, the prohibition of external intervention in internal affairs, and a strong presumption against unilateral secession.

Under this framework, international law generally disfavors the recognition of secessionist movements that arise without the consent of the Parent State. The principle of territorial integrity is invoked to justify the continuation of the existing state order and to discourage the fragmentation of established states. However, this protection does not amount to an absolute right for the Parent State to use any means to prevent secession, including gross human-rights violations or systematic repression of minority groups. The use of excessive force, collective punishment, or denial of basic political rights may themselves trigger obligations under international human-rights and humanitarian law and may be weighed when assessing the legitimacy of a secessionist claim.

Recognition is widely treated as a political act, and most states are reluctant to recognize a secessionist entity unless the Parent State consents or the situation meets exceptional criteria such as prolonged and systematic human-rights abuses or the negotiated settlement of a violent conflict. This hesitation is driven by the fear that early or unilateral recognition may set a precedent encouraging similar movements



within their own territories, often described as the “Pandora’s Box” or “Balkanization” effect.

The Parent State uses this discretion to block the participation of secessionist entities in international forums, arguing that their separation constitutes an illegal violation of national sovereignty. It may refuse to engage in negotiations, withhold cooperation, or pressure international organizations to deny representation or membership. The Parent State often frames recognition as a matter of domestic jurisdiction, insisting that only it may decide the internal political structure of the state.

The present agenda raises whether this discretionary power should remain unlimited. It asks whether a parent state should retain its effective veto over recognition if it is found to be oppressive, discriminatory, or otherwise in breach of its obligations under international human-rights law, or if the secessionist entity has demonstrated stable, effective governance over a significant period. It further examines whether the international community should develop clearer guidelines under which the Parent State’s discretion is constrained—for example, by linking recognition to the fulfilment of the Montevideo criteria, the conduct of a peaceful separation process, or the absence of gross human-rights violations—while still safeguarding the principle of territorial integrity.

In legal terms, the Parent State’s ability to block recognition is not a formal, codified veto in treaties or the UN Charter; other states and international bodies retain the theoretical capacity to recognize or admit a secessionist entity independently.

However, in practice, its discretion functions as a decisive political bottleneck shaping the trajectory of recognition and the prospects for new entities to achieve full international legal status.



IV. The Paradox of Sovereignty

The conflict between the principles of **Territorial Integrity** and the right to **Self-Determination** remains the central "tectonic fault line" in modern international law. The United Nations Charter, the very foundation of the modern global order, contains a profound internal contradiction: while Article 2(4) mandates the protection of the sovereignty and territorial borders of existing states, Article 1(2) explicitly supports the right of "peoples" to determine their own political future. In practice, balancing these two mandates has proven to be one of the most difficult challenges in the history of SPECPOL.

The Colonial Distinction: The "Salt-Water" Principle

Historically, the international community resolved this tension through what legal scholars call the **"Salt-Water" Principle** (or the Blue-Water Doctrine). This idea developed in decolonization practice and political doctrine during the mid-20th century and is often associated with the effect of UN General Assembly Resolution 1514. This principle established that the right to self-determination applies primarily to "peoples" separated from their "Parent State" by a vast expanse of ocean. In these cases, the secession was viewed not as a violation of territorial integrity, but as the liberation of a colony from a distant, overseas master.

Because of this principle, the UN was able to facilitate the independence of dozens of nations in Africa, Asia, and the Caribbean without undermining the general rule of territorial integrity. However, this created a strict legal ceiling: if a secessionist group was part of a contiguous landmass—sharing a border with the Parent State—they were rarely granted the same "anti-colonial" right to independence. This "geographic lottery"



meant that a territory separated by sea was a "colony" (eligible for statehood), while a territory connected by land was an "internal minority" (subject to the Parent State's discretion). In practice the distinction was never an absolute legal rule—continental colonies, mandates, and protectorates sometimes gained independence, and international responses have varied; the 'geographic lottery' is a useful heuristic but overstates the neatness of historical outcomes.

The Parent State's Defense: The Fear of Balkanization

From the perspective of the parent state, the preservation of territorial integrity is an existential necessity tied directly to national survival, political stability, and regional security. Governments argue that recognizing unilateral secessionist movements, particularly those that do not meet historical "Salt-Water" colonial criteria, threaten to dismantle established constitutional orders and fracture national unity. This position is driven by a pervasive fear of "Balkanization," the geopolitical theory that permitting a single successful secession will trigger a domino effect, encouraging numerous other ethnic or regional separatist movements within the state's own borders. Consequently, parent states maintain that a unilateral declaration of independence is not a legitimate exercise of democratic choice, but rather an unlawful domestic rebellion that undermines the rule of law. While international law fundamentally prioritizes the principle of non-interference and the preservation of existing international boundaries, it does not grant states an unlimited license to engage in unlawful internal conduct or commit serious human rights violations; however, any external intervention to protect populations remains highly restricted, legally fraught, and heavily contested.



The Secessionist Argument

Conversely, secessionist entities contend that relying on the traditional "salt-water" principle is an outdated, arbitrary, and discriminatory relic of the colonial era that fails to address modern geopolitical realities. They argue that populations enduring systematic political exclusion, gross human rights abuses, ethnic persecution, or the total denial of meaningful internal self-governance possess an inherent right to pursue independence, regardless of geographic proximity to the parent state. This argument forms the core of **"Remedial Secession"** theory, which posits that a sovereign state effectively forfeits its claim to territorial integrity when it fundamentally breaches the social contract by committing atrocities against its own citizens or entirely suppressing their internal autonomy. Under this framework, secessionist groups do not view their actions as a rebellion, but rather as a necessary act of decolonization directed against an internal oppressor.

The practical application of these opposing arguments creates a profound challenge for the international community, as there are currently no universally accepted legal standards defining when a right to remedial secession is triggered. This lack of codification results in highly inconsistent, selective, and politically motivated international responses to sovereignty disputes. As a result, the international system routinely struggles to reconcile a parent state's sovereign right to domestic non-interference with the humanitarian imperative to protect marginalized populations seeking external self-determination.



Recognition, Sovereignty, and Humanitarian Access

The intersection of territorial sovereignty, political recognition, and humanitarian access represents one of the most complex challenges within contemporary international relations. In numerous contested regions globally, civilian populations are trapped in a state of “legal limbo”. While several secessionist entities arguably satisfy the classical criteria for statehood outlined in the Montevideo Convention, they remain unrecognized or only partially recognized due to the political discretion of member states and the fierce opposition of their parent states. Although modern international law largely views recognition as declaratory rather than constitutive, the practical absence of widespread recognition effectively debars these entities from international organizations, global financial architectures, and formal multilateral development assistance.

To reassert sovereignty and territorial integrity, parent states frequently deploy non-military leverage such as economic restrictions, border closures, blockades, and the disruption of vital utilities like electricity, fuel, and water. While these measures are designed to pressure secessionist authorities, the resulting socioeconomic fallout disproportionately impacts innocent civilians rather than political or military elites, leading to hyperinflation, acute shortages of basic goods, and systemic infrastructure collapse. Furthermore, the protection of human rights in these territories is exceptionally fragile because unrecognized entities sit outside the formal United Nations treaty system, rendering international oversight and accountability mechanisms inconsistent, selective, or heavily politicized.

This isolation creates a pervasive state of de facto statelessness for millions of civilians who lack internationally accepted travel documents or a verified legal status. Consequently, these individuals face severe restrictions on their freedom of



movement, limiting their ability to pursue higher education or employment abroad, engage in cross-border commerce, or access formal channels for international refugee protection. The core challenge for the international community lies in navigating this delicate balance: formulating innovative, status-neutral frameworks that guarantee unhindered humanitarian access, protect fundamental human rights, and alleviate de facto statelessness, all while respecting the sacrosanct principle of state sovereignty and territorial integrity.



Present Situation

The contemporary international system faces increasing instability regarding the recognition of secessionist entities and the interpretation of statehood under international law. The traditional balance between territorial integrity and self-determination has become progressively more contested as separatist conflicts, geopolitical rivalries, humanitarian crises, and competing interpretations of sovereignty continue to reshape global diplomacy. Although the Montevideo Convention establishes objective criteria for statehood, recognition in practice remains heavily influenced by political considerations rather than solely legal principles.

Selective Recognition and Geopolitical Inconsistency

One of the defining features of the present situation is the inconsistent and selective recognition of secessionist entities by the international community. While certain entities exercising effective territorial control and functioning governmental institutions receive broad diplomatic support, others possessing similar characteristics remain internationally isolated. This inconsistency has weakened confidence in the neutrality and predictability of international recognition practices.

The case of Kosovo continues to illustrate this divide. More than one hundred states recognize Kosovo as an independent state, citing humanitarian intervention, prolonged conflict, and democratic self-governance as justification for recognition. However, several countries—including Serbia, Russia, China, India, and Spain—continue to reject Kosovo's independence due to concerns surrounding



territorial integrity and the precedent unilateral secession may establish for separatist movements within their own borders.

Similarly, Taiwan maintains many of the practical attributes associated with sovereign statehood, including effective governance, economic independence, and extensive participation in global trade systems. Nevertheless, the “One China Policy” has prevented its formal recognition by much of the international community despite substantial unofficial engagement with numerous states.

At the same time, entities such as Somaliland continue to demonstrate long-term political stability, electoral governance, and administrative control while remaining excluded from formal recognition frameworks due largely to regional concerns regarding border alteration and separatist precedent. These examples collectively demonstrate that recognition is often determined less by objective legal criteria and more by strategic geopolitical interests.

Rise of Frozen Conflicts and De Facto States

The modern international system has also witnessed the persistence of “frozen conflicts” and partially recognized territories that exist in a prolonged condition between statehood and non-recognition. Regions such as Northern Cyprus, Abkhazia, South Ossetia, Transnistria, and others continue functioning through independent administrative structures while lacking broad international legitimacy.

These disputes frequently produce long-term diplomatic deadlock. Parent states often refuse negotiations that could legitimize separatist authorities, while secessionist entities seek external support to strengthen claims of sovereignty. As a result, millions



of civilians remain trapped in politically uncertain territories where questions of citizenship, legal identity, trade access, and diplomatic representation remain unresolved.

In many situations, external powers further complicate recognition disputes by providing military, economic, or political support to favored entities. Consequently, recognition increasingly functions not merely as a legal determination, but as a geopolitical instrument used to advance regional influence and strategic interests.

Humanitarian Consequences of Non-Recognition

The humanitarian impact of prolonged non-recognition has become one of the most urgent dimensions of the present agenda. Populations residing within disputed territories frequently encounter restrictions on travel, education, healthcare access, banking systems, and participation in international institutions due to their unclear legal status.

Unrecognized or partially recognized entities are often excluded from international treaty systems, multilateral development programs, and formal humanitarian mechanisms. This institutional isolation weakens accountability structures and limits access to financial assistance, reconstruction support, and international oversight. Civilians living in such regions may therefore experience economic collapse, infrastructural deterioration, and long-term social instability despite exercising little influence over the underlying political dispute.

Additionally, parent states occasionally employ economic restrictions, border closures, sanctions, or blockades in an effort to reassert sovereignty over contested territories.



Although such measures are often justified as legitimate tools of state authority, their consequences disproportionately affect civilian populations by disrupting trade, employment, healthcare systems, and access to essential resources.

Growing Debate Over Parent State Discretion

A major issue confronting the international community today concerns the extent to which parent states should retain broad discretion over recognition matters. Under the current system, the consent of the parent state frequently acts as a de facto prerequisite for international acceptance of secessionist entities. Many governments defend this position by arguing that weakening territorial integrity could encourage global instability and increase separatist violence.

However, critics increasingly argue that unlimited parent-state discretion allows governments accused of systemic discrimination, political repression, or serious human-rights violations to indefinitely suppress legitimate claims to self-determination. This debate has intensified discussions surrounding “remedial secession,” which proposes that populations subjected to prolonged persecution or denial of meaningful political participation may possess a limited right to external self-determination.

Despite growing academic and diplomatic discussion, no universally accepted legal standard currently exists defining:

- when remedial secession becomes legitimate,
- whether effective governance should create a presumption toward recognition,



- or the circumstances under which territorial integrity may be overridden by humanitarian considerations.

This absence of codified standards continues to produce inconsistent international responses across similar cases.

International Organizations and the Future of Recognition

International organizations remain deeply divided regarding how recognition disputes should be addressed. The United Nations continues to emphasize both territorial integrity and self-determination without establishing a definitive framework reconciling the two principles. Meanwhile, regional organizations often adopt differing approaches based upon historical, political, and security considerations.

The African Union generally prioritizes preservation of colonial-era borders to avoid widespread fragmentation across the continent, while several Western states have shown greater willingness to support conditional recognition under exceptional humanitarian circumstances. Other powers remain highly cautious due to domestic separatist concerns and fears of encouraging further territorial disputes.

As separatist conflicts continue to emerge in different regions of the world, pressure has increased for the international community to develop clearer and more consistent standards governing:

- recognition practices,
- humanitarian engagement,
- civilian protections,
- and limitations on parent-state discretion.



Many legal scholars and policymakers argue that the absence of transparent guidelines has contributed to prolonged instability, selective diplomacy, and inconsistent application of international law. Consequently, revisiting the Montevideo framework and establishing modern recognition standards has become increasingly important for maintaining international stability and preventing future sovereignty disputes.

Sustainable Development, Economic Impacts and Post-Recognition Cooperation

The legal and political uncertainty surrounding secessionist disputes extends far beyond questions of formal sovereignty and diplomatic recognition. In practice, prolonged disputes over statehood frequently influence economic development, institutional stability, humanitarian conditions, and regional cooperation. Questions relating to recognition often determine the extent to which contested territories are able to participate in international financial systems, multilateral institutions, development frameworks, and cross-border economic networks.

As a result, the consequences of non-recognition are not limited solely to diplomatic isolation. In many situations, unresolved disputes concerning sovereignty and territorial legitimacy produce long-term effects on governance capacity, infrastructure development, trade access, civilian welfare, and post-conflict reconstruction. These challenges have increasingly drawn the attention of international organizations and policymakers seeking to balance political realities with broader concerns relating to regional stability and humanitarian protection.



Development and Political Stability

Economic development has long been regarded as an important factor in maintaining political stability and reducing the likelihood of prolonged conflict. Regions experiencing political uncertainty, territorial disputes, or institutional instability often face slower economic growth, weakened public infrastructure, and reduced investor confidence. In such environments, unresolved governance questions can directly affect long-term development planning, regional cooperation, and civilian welfare.

Political disputes frequently disrupt infrastructure projects, trade networks, transportation systems, and energy connectivity. Over time, these disruptions may weaken industrial productivity, reduce employment opportunities, and increase dependence on external assistance. In regions already affected by conflict, reconstruction efforts often become closely linked with broader questions of governance, security, and international engagement.

Economic Isolation and Institutional Challenges

Territories facing diplomatic uncertainty or limited international engagement often encounter structural economic difficulties. Restrictions involving banking access, international financing, customs arrangements, insurance systems, and foreign investment can significantly slow economic modernization and institutional growth.

International corporations and financial institutions generally prioritize political predictability and legal clarity before committing long-term investment. As a result, disputed or politically unstable regions may struggle to attract sustainable economic partnerships even when they possess viable industries, natural resources, or strategic trade locations.



Institutional uncertainty may also affect domestic governance. Limited economic opportunities can weaken administrative capacity, reduce public revenue, and complicate investment in healthcare, education, housing, and transportation infrastructure. In prolonged disputes, younger populations may experience unemployment, migration pressures, and restricted social mobility, contributing to long-term developmental stagnation.

Sustainable Development and Civilian Welfare

The relationship between sustainable development and civilian welfare has become increasingly important within contemporary international policy discussions. Development today is no longer understood solely through economic growth statistics, but also through access to healthcare, education, environmental sustainability, food security, and technological infrastructure.

In post-conflict or politically disputed regions, these sectors are often severely affected by instability. Damaged infrastructure, disrupted supply chains, population displacement, and weakened public institutions may continue affecting civilian populations long after active violence declines. Reconstruction therefore requires not only physical rebuilding, but also institutional recovery and social stabilization.

International organizations frequently emphasize that long-term peace is difficult to maintain in environments characterized by economic collapse, unequal development, or persistent humanitarian vulnerability. Consequently, development policy has increasingly become connected with broader peacebuilding and conflict-prevention strategies.

Regional Economic Interdependence



Modern economies are deeply interconnected through trade, energy systems, transportation corridors, telecommunications, and financial networks. Political instability within one region can therefore produce economic consequences extending well beyond immediate territorial boundaries.

Border restrictions, sanctions regimes, interrupted transit routes, and damaged infrastructure can affect neighboring economies by reducing commercial activity and increasing logistical costs. Similarly, prolonged instability may disrupt regional development initiatives involving pipelines, ports, railways, water resources, or cross-border industrial cooperation.

For this reason, many governments and international institutions increasingly view economic cooperation as an important mechanism for regional stabilization. Trade agreements, infrastructure partnerships, and coordinated development programs are often considered tools capable of reducing tensions while encouraging long-term interdependence between neighboring regions.

Reconstruction and Post-Conflict Recovery

Post-conflict recovery remains one of the most difficult aspects of political stabilization. Regions emerging from prolonged instability frequently require extensive reconstruction involving housing systems, healthcare infrastructure, education networks, transportation facilities, telecommunications, and public utilities.

Reconstruction efforts are often complicated by governance disputes, funding shortages, security concerns, and competing political interests. In many situations, recovery may depend heavily upon external development assistance, international financial support, and multilateral coordination mechanisms.



At the same time, reconstruction is not solely an economic process. Questions involving legal identity, institutional legitimacy, property rights, displaced populations, and political representation frequently shape how recovery programs are implemented. Sustainable reconstruction therefore requires both economic investment and stable administrative structures capable of maintaining long-term governance.

International Cooperation and Development Frameworks

International institutions play a significant role in promoting development cooperation through humanitarian programs, infrastructure financing, trade facilitation, environmental initiatives, and technical assistance. Organizations within the United Nations system, regional development banks, and international financial institutions frequently coordinate projects aimed at improving long-term economic resilience and civilian living conditions.

However, political disputes and diplomatic tensions may complicate participation within such frameworks. Questions relating to recognition, representation, treaty obligations, and international status can influence how development assistance is distributed and administered.

This has contributed to broader discussions regarding whether development cooperation should function independently from political disputes in situations where civilian welfare and humanitarian conditions are significantly affected.



Long-Term Development and Global Stability

Increasingly, policymakers and international organizations recognize that sustainable development and international stability are closely interconnected. Persistent underdevelopment, economic exclusion, institutional fragility, and regional inequality may contribute to prolonged instability, migration pressures, humanitarian crises, and renewed conflict.

As a result, development policy is now frequently discussed alongside broader issues of governance, conflict prevention, international cooperation, and institutional resilience. Long-term stability is often understood not only through military or diplomatic measures, but also through the ability of societies to maintain functioning institutions, economic opportunity, and social welfare systems over extended periods of political change.



Case Study: Recognized and Partially Recognized Countries

Kosovo

The declaration of independence by Kosovo in 2008 significantly influenced modern debates surrounding unilateral secession and international recognition. Unlike many earlier secessionist disputes, Kosovo emerged following ethnic conflict, humanitarian intervention, and prolonged administration under the United Nations. Several Western states justified recognition by arguing that Kosovo represented a unique or *sui generis* case resulting from exceptional humanitarian and political circumstances.

However, the recognition of Kosovo also generated concerns regarding precedent. States confronting separatist movements domestically argued that the case weakened the principle of territorial integrity and introduced uncertainty into international recognition practices. The 2010 Advisory Opinion issued by the International Court of Justice concluded that declarations of independence are not inherently prohibited under international law, but deliberately avoided establishing a universal legal framework governing secession or recognition. Consequently, Kosovo highlighted the continued absence of consistent procedural standards within the international system.

Taiwan



Taiwan represents one of the clearest examples of the distinction between effective governance and formal diplomatic recognition. Taiwan maintains a permanent population, defined territory, democratic institutions, advanced industrial capacity, and extensive participation within global trade networks. Nevertheless, it remains excluded from United Nations membership due to the broader diplomatic framework associated with the “One China” policy.

The Taiwanese case demonstrates that state functionality alone does not necessarily guarantee universal recognition. Many states maintain substantial economic and informal political relations with Taiwan while simultaneously avoiding formal diplomatic recognition. This has produced a system of strategic ambiguity in which practical international engagement coexists alongside unresolved questions of sovereignty and representation.

Somaliland

Since declaring independence from Somalia in 1991, Somaliland has established relatively stable governing institutions, electoral systems, and security structures while exercising sustained administrative control over significant territory. Despite demonstrating many characteristics associated with statehood under the Montevideo framework, Somaliland has not achieved broad international recognition.

The case is frequently referenced in debates concerning the limits of factual statehood criteria. Regional organizations, particularly the African Union, have remained cautious regarding recognition due to concerns that altering colonial-era borders could intensify separatist movements elsewhere on the continent. Somaliland



therefore illustrates how geopolitical and regional stability considerations often outweigh institutional effectiveness within recognition processes.

Northern Cyprus

The dispute surrounding Northern Cyprus demonstrates the influence external powers may exercise within secessionist conflicts. Following the Turkish intervention in Cyprus in 1974, Northern Cyprus declared independence in 1983 and has since remained recognized only by Turkey.

The United Nations Security Council rejected the declaration as legally invalid, yet Northern Cyprus continues functioning through separate administrative and political institutions heavily supported by Turkey economically, militarily, and diplomatically. The case therefore raised broader concerns regarding external sponsorship, military presence, and the extent to which dependence upon a patron state affects perceptions of sovereign legitimacy.

South Sudan

The independence of South Sudan in 2011 marked one of the most significant internationally supported secession processes of the modern era. Following decades of conflict with Sudan, South Sudan achieved broad diplomatic recognition after internationally mediated peace agreements and a referendum process.

However, the years following independence demonstrated that recognition alone does not guarantee institutional stability or sustainable governance. Internal political



violence, humanitarian crises, economic instability, and large-scale displacement persisted despite international recognition. South Sudan consequently became an important example of the distinction between formal sovereignty and long-term state-building capacity.

Palestine

The status of Palestine remains among the most debated recognition disputes within contemporary international relations. Palestine has received recognition from numerous UN member states and holds non-member observer state status within the United Nations, yet sovereignty, territorial control, and final political settlement remain unresolved.

The Palestinian case illustrates how recognition may exist simultaneously with ongoing territorial disputes and incomplete administrative authority. It also demonstrates the growing importance of international organizations in shaping political legitimacy beyond traditional bilateral recognition alone. Questions surrounding occupation, self-determination, humanitarian law, and international mediation have made Palestine one of the most politically significant examples of contested sovereignty in the modern international system.



Research Tips

To develop a comprehensive understanding of the agenda item and contribute effectively to committee debate, delegates are encouraged to explore a wide range of legal, political, and historical sources related to statehood, recognition, self-determination, and territorial integrity. Particular attention should be given to how international law currently regulates – or fails to regulate – the recognition of secessionist entities and the extent to which parent States can influence or obstruct such recognition. Delegates are also encouraged to research beyond the context of the background guide to have an in-depth and comprehensive understanding of the topic at hand.

United Nations Documents and Resolutions:

Review resolutions, reports, and advisory opinions issued by the United Nations, particularly those of the UN General Assembly, Security Council, and the International Court of Justice (ICJ). Delegates should focus on documents concerning self-determination, territorial integrity, decolonization, remedial secession, and humanitarian access in contested territories. The ICJ Advisory Opinion on Kosovo and relevant General Assembly resolutions may be particularly useful in understanding differing interpretations of recognition and sovereignty.

The Montevideo Convention and International Legal Principles:

Develop a detailed understanding of the principles established under the Montevideo Convention and evaluate whether these criteria remain sufficient in contemporary international relations. Delegates should research the declaratory and constitutive theories of recognition, the principle of *uti possidetis juris*, and the tension between self-determination and territorial integrity under the UN Charter.



Case Studies of Secessionist and Partially Recognized Entities:

Examine historical and contemporary examples of disputed or partially recognized territories to understand how recognition is applied inconsistently in practice.

Delegates may research Kosovo, Taiwan, Palestine, Northern Cyprus, Abkhazia, South Ossetia, Somaliland, and recent discussions surrounding entities such as Donetsk and Luhansk. Compare the political, humanitarian, and legal factors influencing their international status.

Parent State Discretion and International Recognition:

Investigate the role parent States play in blocking or influencing recognition processes through diplomatic pressure, economic measures, border controls, or restrictions on humanitarian access. Delegates should consider whether international guidelines should place clearer limits on the ability of parent States to indefinitely prevent recognition or engagement with de facto authorities.

Human Rights and Humanitarian Concerns:

Research the humanitarian consequences of prolonged non-recognition, including displacement, statelessness, restricted movement, sanctions, economic isolation, and limited access to international aid. Delegates should also examine how civilians are affected when disputed territories fall outside established systems of international legal accountability and treaty participation.

Regional Organizations and International Actors:

Study the approaches adopted by organizations such as the European Union, African Union, North Atlantic Treaty Organization, and Association of Southeast Asian Nations toward separatist conflicts and recognition disputes. Understanding how geopolitical interests shape recognition policies will help delegates analyze why similar cases are often treated differently.



Academic Scholarship and Policy Analysis:

Consult scholarly articles, legal journals, and policy papers addressing secession, sovereignty, recognition, and conflict resolution. Delegates should explore debates surrounding conditional recognition, earned sovereignty, remedial secession, and proposals for reforming international recognition practices.

Contemporary Developments and Diplomatic Positions:

Remain informed about current geopolitical developments and state positions regarding disputed territories. Delegates should research how major powers approach recognition disputes and consider how national interests, alliances, and security concerns influence international responses to secessionist movements.



Committee Guidelines

During the MUN conference, delegates in the SpecPol committee should:

Research:

Delegates should conduct thorough research on the agenda topic, focusing on the Montevideo Convention criteria, including permanent population, defined territory, effective government, and capacity for international relations. They should also understand how recognition of states and secessionist entities works in practice, and how different countries interpret and apply these principles in real political situations.

Constructive Dialogue:

Delegates must engage in respectful and meaningful debate with other participants. They should listen carefully to opposing viewpoints, respond thoughtfully, and ensure that discussions remain focused on cooperation and problem-solving rather than personal disagreement.

Consensus-Building:

Delegates should aim to build agreements through negotiation, compromise, and collaboration. While representing their assigned country's interests, they should also be open to shared solutions that can gain wider support among committee members.

Resolution Drafting:

Delegates are expected to contribute to well-structured draft resolutions that present clear ideas and practical approaches. These should be realistic, balanced, and based on the discussions held in committee, aiming to provide constructive recommendations rather than rigid or overly complex frameworks.



Position Paper Policy

What is a Position Paper?

A position paper is a brief overview of a country's stance on the topics being discussed by a particular committee. Though there is no specific format that the position paper must follow, it should include a description of the position your country holds on the issues on the agenda, relevant actions that your country has taken, and potential solutions that your country would support.

Remember the recent decisions taken by your own country and major events that have taken place after the conflict and your foreign policy regarding the same. The Position papers should include the following details:

- The delegate's preliminary understanding of the topic and what it entails
- Allocation of the delegate and your stance on this agenda
- Your proposed plan of action and effective solutions
- Any information regarding your portfolio that you think the Executive Board members should know
- Furthermore, your expectations as to how this committee should progress and what your expectations are from the debate.



Position Paper Format

Country:

Delegates:

Committee:

Agenda:

Paragraph One – Issue and Position

Utilize this paragraph to clearly outline the main problems associated with your topic. The point of the paragraph is to provide a basic foundation as to the current situation associated with your topic. After generally describing the issue, give your country's policy regarding the issue, and state especially why your country supports that policy. This section of your position paper should not exceed five to six sentences.

Paragraph Two – Detailed Background Information

This paragraph is an opportunity for you to show the depth of your knowledge about the past and current situations regarding your topic. Be sure to discuss:

- Historical origin of the problem, particularly why the problem arose
- How does the issue relate to the international community and why is it of international concern
- Previous actions taken to try and solve the problem (if any)
- Successes and failures of past actions and why they succeeded or failed
- Problems that continue to exist or ones that have not yet been addressed

Devoting two to three sentences per item on this list should allow you to have sufficiently discussed the topic and to set the foundations for the final paragraph of your position paper.



Paragraph Three – Proposed Solutions Regarding the Issue

This paragraph is the one that will set your paper apart from the others. After identifying the problems in paragraph two, utilize this paragraph to list your solutions to all the problems you enumerated above. The quality of your solutions could be a great determinant in the overall evaluation of your position paper. Be sure to discuss:

- Specific proposals regarding how to solve specific issues
- How each proposal will be implemented, including the feasibility
- Global impact of solving the problem or implementing these solutions

–Be in a standard font (e.g. Times New Roman) with 12-point font size and 1-inch document margins, each position paper should not exceed two pages, and should all be combined into a single PDF or Word document per delegate (other formats will not be accepted.)

Due Dates and Submission Procedure

Position papers for this committee must be submitted by midnight of 18th July 2026. Once your position paper is complete, please save the file as your country and position paper and send it as an attachment in an email to your committee's email address, with the subject heading as your country name and position paper. (File should be saved as Country – Position Paper)

Each position paper will be manually reviewed.

The email address for this committee is: chair.specpol@welhamboys.org



Draft Resolution

Draft Resolution – The reason for which the committee is taking the issue at hand into consideration is stated by the preamble of a draft resolution. Each clause starts with a preambulatory phrase and ends with a comma. They can incorporate:

- References to past UN resolutions or treaties on the topic.
- Reference to the UN Charter.
- Recognition in dealing with the issue.
- Statements on the issue.

Preambulatory Phrases

- | | |
|-------------------------------|-----------------------------|
| • Affirming | • Recognizing |
| • Expecting | • Confident |
| • Observing | • Further deploring |
| • Alarmed by | • Referring |
| • Expecting | • Contemplating |
| • Reaffirming | • Further recalling |
| • Approving | • Seeking |
| • Expressing its appreciation | • Convinced |
| • Realising | • Guided by |
| • Bearing in mind | • Taking into consideration |
| • Fulfilling | • Declaring |
| • Recalling | • Having adopted |



- Believing
- Fully aware
- Taking note
- Deeply concerned

Operative Clauses

Solutions are offered to the issue by the Operative Clauses. They are action based and should be underlined at the starting point of the proposed solution. These should be followed:

- Clauses are to be numbered.
- Every clause is to be supported by each other.
- The solution is to be built upon with the help of these clauses.
- They are to punctuate with semicolons and the last clause is to be ended with a period.

Sample Operative Phrases

- Designates
- Further resolves
- Affirms
- Draws the attention
- Has resolved
- Approves
- Emphasises
- Expresses hope
- Regrets
- Confirms
- Further invites
- Reminds
- Congratulates
- Further proclaims



Questions a Resolution Must Answer

1. What legal standard should determine whether a secessionist entity may be treated as a state for international purposes?
2. Should the Montevideo criteria remain the primary benchmark for recognition, or should additional legal and political conditions be added?
3. Should the consent of the Parent State remain decisive in recognition matters, or only one factor among several?
4. At what point does the Parent State's opposition to secession lose legitimacy under international law?
5. Should international law impose objective limits on a Parent State's ability to block recognition of a secessionist entity?
6. Should serious and persistent human-rights violations by the Parent State reduce its influence over recognition?
7. How should the international community distinguish between legitimate protection of territorial integrity and abusive suppression of self-determination?
8. To what extent should sustained de facto governance influence international consideration of recognition claims?
9. Should recognition depend only on effective control, or also on institutional stability and respect for rights?
10. How should the right to self-determination be balanced against the principle of territorial integrity in non-colonial contexts?



Bibliography

<https://www.un.org/en/about-us/about-un-membership>
<https://treaties.un.org/pages/showdetails.aspx?objid=0800000280166aef>
<https://www.britannica.com/event/Montevideo-Convention>
http://www.hudok.info/files/1114/3526/0588/Evi-Roc_12_Monte-video.pdf
<https://www.ejil.org/pdfs/9/3/664.pdf>
https://un.op.org/wp-content/uploads/2022/06/4.-Self-determination-and-territorial-integrity_EN.pdf
https://www.mpil.de/files/pdf2/mpunyb_01_orakhel_12.pdf
<https://www.justia.com/international-law/formation-and-recognition-of-states-under-international-law/>
https://legal.un.org/ilc/documentation/english/a_cn4_267.pdf
<https://eprints.staffs.ac.uk/9149/>
<https://brooklynworks.brooklaw.edu/bjil/vol41/iss1/1/>

Important Links

[United Nations Official Website](#)
[United Nations General Assembly](#)
[International Court of Justice](#)
[Montevideo Convention \(Full Text\)](#)
[UN Digital Library](#)
[UN Peacekeeping Operations](#)